



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 2, 2024

Re: CCRB Case Nos. 202102770 & 202200687 (Incident Dates: March 12, 2021 and May 26, 2022 on DADS No. 2022-26862; February 2, 2023 on DADS No. 2023-28303) involving Detective Andre Brown, Tax No. 966482

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Detective (then Police Officer) Andre Brown and has determined that some of his actions do not warrant discipline.

With respect to Disciplinary Case No. 2022-26862, specifically Specification No. 5, the video footage clearly shows the complainant was not attempting to record the encounter with Detective Brown. The individual was using his phone to video chat with his friend and at no time mentioned that he intended to record the interaction. The Police Commissioner has determined the complainant was not using his cell phone as a recording device. Therefore, the Police Commissioner intends to issue no disciplinary action for this allegation, as there is no evidence Detective Brown intended to interfere with a recording device.

Furthermore, with respect to Disciplinary Case No. 2022-26862, specifically Specification No. 7, Detective Brown's interview occurred approximately fourteen (14) months after the incident date. The Police Commissioner has determined it is important to note that Detective Brown did not specifically deny making discourteous or offensive statements, but rather he did not know if he made those statements. Detective Brown could not definitively recognize his voice during his CCRB interview. The Police Commissioner will issue no discipline in regard to this allegation, as he has determined CCRB has failed to meet its burden. The Police Commissioner agrees with the substantiation of Specification Nos. 1, 2, 3, 4, and 6.

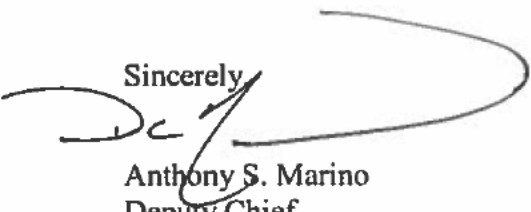
Therefore, with respect to DADS No. 2022-26862, the Police Commissioner intends to penalize Detective Brown ten (10) vacation days for Specification Nos. 1, 2, 3, 4, and 6. However,

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the Police Commissioner intends to dismiss Specification Nos. 5 and 7 and impose no disciplinary action. With respect to DADS No. 2023-28303, the Police Commissioner intends to penalize Detective Brown five (5) vacation days for both Specifications. Said penalties shall run concurrently for a total of fifteen (15) vacation days as a disciplinary penalty.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

May 6, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case Nos. 202102770 & 02200687 (Incident Dates: March 12, 2021 and May 26, 2022 on DADS No. 2022-26862; February 2, 2023 on DADS No. 2022-28303) involving Detective Andre Brown, Tax No. 966482.

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 2, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

On September 12, 2023, in front of Assistant Deputy Commissioner Vanessa Facio-Lince, Detective Brown pled guilty to the Charges and Specifications on both matters in return for a sentence of the forfeiture of fifteen (15) vacation days on each matter, with those sentences to run concurrently to one another, for a total of the forfeiture of fifteen (15) vacation days.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend to impose the forfeiture of ten (10) vacation days on DADS No. 2022-26862 and the forfeiture of five (5) vacation days on DADS No. 2023-28303, for a total of the forfeiture of fifteen (15) vacation days. Furthermore, Deputy Chief Marino stated that you intend to dismiss Charges 5 and 7 on DADS No. 2022-26862.

While the CCRB agrees with the Commissioner’s intention to penalize Detective Brown fifteen (15) days for his misconduct in these cases, we disagree with his intention to dismiss Charges 5 and 7 on DADS No. 2022-26862. The BWC evidence clearly shows Detective Brown attempt to prevent § 87(2)(b) from using his phone to record the incident, by grabbing at the phone and threatening to throw it to the ground. Furthermore, Detective Brown made an inaccurate statement when, in his interview with CCRB, he stated that he

could not tell whether the voice that can be heard on his own BWC stating “Yeah, that’s gay,” and “He’s a little slow” was his own voice. Detective Brown’s voice could be heard throughout his BWC footage, and it was inaccurate, at the very least, for Detective Brown to claim that he could not tell whether that it was his own voice making those statements.

The CCRB would ask the Police Commissioner to accept the CCRB’s recommendation and penalty that was agreed to by Detective Brown in his guilty plea and impose upon Detective Brown the forfeiture of fifteen (15) vacation days for these matters.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
General Counsel
NYC Civilian Complaint Review Board